

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

----- X
MIGUEL CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officer THOMAS KETCHAM, Shield No.
23642, and Police Officers JOHN DOES 1, 2, 3, etc.
(the name John Doe being fictitious as the true names of
said officers are currently not known), all of whom are
sued in their individual capacities,

Defendants.
----- X

SUMMONS

Plaintiff designates Bronx County
as the County of Venue

Venue is based upon Plaintiff's
residence.

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at their
address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer
must be served within 20 days after such service of the summons, excluding the date of service. If
the summons was not personally delivered to you within the State of New York, the answer must
be served within 30 days after service of the summons is complete as provided by law. If you do
not serve an answer to the attached complaint within the applicable time limitation, a judgment
may be entered against you, by plaintiff, for the relief demanded in the complaint, without further
notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the
County of the Bronx. This action is brought in the County of the Bronx because it is the place
where Plaintiff resides.

Dated: February 12, 2019
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By:

David B. Rankin
99 Park Avenue, PH/26thFloor
New York, New York 10016
t: (212) 277-5825
e: drankin@blhny.com

TO: City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

Police Officer Thomas Ketcham (Shield No. 23642)
Patrol Borough Manhattan South
230 E. 21st Street
New York, NY 10010

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

----- X
MIGUEL CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officer THOMAS KETCHAM, Shield No.
23642, and Police Officers JOHN DOES 1, 2, 3, etc.
(the name John Doe being fictitious as the true names of
said officers are currently not known), all of whom are
sued in their individual capacities,

Defendants.
----- X

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Index No.:

Miguel Cruz, by his attorneys, Beldock Levine and Hoffman LLP, for his Complaint,
alleges as follows:

INTRODUCTION

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, detained, searched, and arrested him. By reason of Defendants' actions, including their unreasonable and unlawful searches and seizures, Plaintiff was deprived of his constitutional rights.

3. Plaintiff seeks an award of compensatory and punitive damages, and attorneys' fees.

PARTIES

1. At all times hereinafter mentioned, Miguel Cruz was and is still a resident of the County of the Bronx in the State of New York.

2. Defendant The City of New York (“City”) is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.

3. New York City Police Department Officer (“P.O.”) Thomas Ketcham, Shield No. 23642, and P.O. John Does 1, 2, 3, etc. (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees and agents of the NYPD.

4. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

5. The Individual Defendants are being sued in their individual capacities.

6. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff's rights.

7. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

8. The true name and shield number of the John Doe Defendants are not currently known to the Plaintiff. However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said individuals as Defendants in an amended pleading once the true names and shield numbers of said Defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

JURISDICTION

9. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988; the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

VENUE

10. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx because the Plaintiff resides in the Bronx.

STATEMENT OF FACTS

11. On November 13, 2016, at approximately 7:45 p.m., Miguel Cruz was unlawfully arrested by P.O. Thomas Ketcham, Shield No. 23642, and P.O. John Does 1, 2, 3, etc. at or about the Lids Store 5594 ("Lids") located at 239 West 42nd Street, New York, New York 10036.

12. Plaintiff was shopping in Times Square on his day off from work.

13. Plaintiff purchased a pair of Beats headphones at a Best Buy located at 529 5th Ave, New York, New York 10017.

14. Plaintiff carried the receipt of that purchase with him in the shopping bag along with the purchased headphones as he left the Best Buy.

15. At or around the Best Buy, upon information and belief, a homeless individual (“Individual”) unknown to Plaintiff asked him for money.

16. As Plaintiff continued walking away from the Best Buy, he noticed the Individual following him.

17. Plaintiff entered the Lids store to continue his shopping.

18. While inside the store, Plaintiff was stopped by officers of the NYPD, including P.O. Thomas Ketcham and P.O. John Does 1, 2, 3, etc.

19. The officers told Plaintiff that the Individual accused Plaintiff of robbing him of the headphones.

20. The officers also said that the Individual told them that Plaintiff had a gun.

21. Neither of these accusations were true.

22. Plaintiff denied both accusations and told the officers that he had bought the headphones at the Best Buy moments earlier.

23. The officers searched Plaintiff and found that he did not have a gun.

24. The officers found the receipt for the headphones in Plaintiff’s shopping bag.

25. The police took Plaintiff into custody and, upon information and belief, gave the headphones to the Individual.

26. Plaintiff spent the night in jail for a crime that he did not commit.

27. Plaintiff was charged with violating Penal Law 155.30(5), grand larceny in the fourth degree, a class E felony.

28. On December 5, 2016, Judge Peterson of the Criminal Court of the City of New York, County of New York, dismissed the criminal complaint on motion of the District Attorney.

FIRST CLAIM
DEPRIVATION OF RIGHTS UNDER THE UNITED STATES CONSTITUTION
42 U.S.C. § 1983
(Against the Individual Defendants)

29. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

30. Defendants, under color of state law, subjected the Plaintiff to the foregoing acts and omissions, thereby depriving Plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from the denial of a fair trial by the presentation of fabricated evidence; (d) right to due process under the law; (e) freedom from malicious prosecution; and (f) freedom from officers' failure to intervene to prevent the complained of conduct.

31. Defendants' deprivation of Plaintiff's constitutional rights resulted in the injuries and damages set forth above.

SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS
42 U.S.C. § 1983
(Against Defendant the City of New York)

32. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

33. At all times material to this complaint, Defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

34. At all times material to this complaint, Defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the individual Defendants and failed to inform the individual Defendant's supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

35. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth, Fifth, and Fourteenth Amendments.

36. As a result of the foregoing, Plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CAUSE OF ACTION
Violations of New York State Constitution

37. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

38. P.O. Ketcham and P.O. John Does 1, 2, 3, etc. subjected Plaintiff to the foregoing acts and omissions without due process of law, thereby depriving the Plaintiffs of rights, privileges, and immunities guaranteed by Article 1, § 6 and 12 of the New York State Constitution, including, without limitation, the right to due process and the right to be free from unreasonable searches and seizures.

39. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights,

privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered the injuries and damages set forth above.

FOURTH CAUSE OF ACTION
Respondeat Superior

40. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

41. At all relevant times, Defendants P.O. Ketcham and John Does 1, 2, 3, etc. were employees of the City and were acting within the scope of their employment.

42. Defendant City of New York is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of Defendants P.O. Ketcham and P.O. John Does 1, 2, 3, etc. set forth herein.

JURY DEMAND

43. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

WHEREFORE, Plaintiff demands judgment against the Defendants individually and jointly and prays for relief as follows:

- a. that he be compensated for violation of his constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. that he be awarded punitive damages against the Individual Defendants; and
- c. that he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may deem just and proper.

Dated: February 12, 2019
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By: _____

David B. Rankin
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff, Mr. Cruz.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: February 12, 2019
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP



By: _____
David B. Rankin
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400